

In the
Court of Appeals
Sixth Appellate District of Texas at Texarkana

No. 06-26-00087-CV

IN RE DONALD ALLEN TRUMBLE

Original Mandamus Proceeding

Before Stevens, C.J., van Cleef and Rambin, JJ.
Memorandum Opinion by Chief Justice Stevens

MEMORANDUM OPINION

Relator, Donald Allen Trumble, seeks relief from this Court, via his petition for a writ of mandamus, arguing that: (1) the trial court abused its discretion by holding Donald in contempt for failure to pay health insurance as that is a debt obligation, (2) the trial court did not have jurisdiction to order Donald to "obtain a new or substituted policy because such an order constitutes a modification of the agreement between the parties," and (3) the Honorable John L. Tidwell "violated his ministerial duty to exercise jurisdiction when he denied the [m]otion to [m]odify and [v]acate [f]inal [j]udgment on the basis that he no longer had the power to do so, because said rule does not apply to contempt judgments." Because we find the contempt provision as it relates to the health-insurance payments is void and that the trial court failed to exercise its jurisdiction as it relates to the motion to vacate or modify the contempt order, we conditionally grant the petition, in part.

I. Background

Upon written agreement between Donald and Real Party in Interest, Tammi Wynette Trumble, a final decree of divorce was entered on August 25, 2015, divorcing Donald and Tammi. In April 2025, Tammi petitioned for contempt and enforcement of the divorce decree, stating that Donald had failed to comply with several terms of the divorce decree, including: (1) monthly payments for Tammi's interest in the community estate, (2) monthly payments to Tammi's retirement account, (3) cancellation of the required life-insurance policy, and (4) failure to pay for Tammi's health insurance. Donald answered and filed special exceptions.

The trial court held a hearing on the matter and, in its final judgment, found that Donald breached the divorce decree by failing to make monthly payments to Tammi for the community estate and into her retirement account, and awarded Tammi "$80,000.00 for unpaid $4,000.00 monthly installment payments" and "$24,000.00 for unpaid $1,000.00 payments into [Tammi's] retirement account." The trial court also found that Donald failed to maintain his life-insurance policy naming Tammi as the beneficiary and failed to make payments for Tammi's health insurance. As a result of those failures, the trial court held Donald in contempt, sentencing him to 180 days' confinement "or until such time as he purges the contempt by reinstating the life[-]insurance policy and paying arrearages to [Tammi] in the amount of $3,000.00 for all unpaid health[-]insurance premiums." The sentence was suspended and probated for a period of fifty-one months "conditioned on [Donald's] reinstatement of the life[-]insurance policy and the payment of arrearages within [ninety] days of entry of th[e] [f]inal [j]udgment and further conditioned upon the continued maintenance of the life[-]insurance policy and monthly payment of [Tammi's] health insurance."

Donald moved to vacate and modify the trial court's final judgment, arguing that the trial court erred in attempting to enforce the nonpayment of Tammi's health insurance by contempt because that is a "debt obligation" and stating that the trial court could not enforce the "non-maintenance of the life[-]insurance policy by coercive contempt because reinstatement is impossible." Tammi responded, arguing that both the failure to pay health insurance and maintain the life-insurance policy did not constitute debt obligations.

After a hearing and additional briefing, on July 15, 2026, the trial court entered an order stating that "even if it were inclined to vacate or modify its Final Judgment entered on or about April 22, 2026, which it would not be inclined to do, it lacks jurisdiction to modify or vacate the Final Judgment." The trial court's order then stated,

> For purposes of clarification, the intent of the [trial court's] order, as reflected in its Final Judgment, for [Donald] to "reinstate" life[-]insurance coverage was not to have the same life[-]insurance policy that [Donald] allowed to lapse reinstated. Clearly, the intent of the order was for [Donald] to obtain a life[-]insurance policy, whether it be referred to as a substitute or replacement policy, with one million dollars in coverage, the amount of coverage in effect at the time the [d]ecree was entered, naming [Tammi] as beneficiary of that policy for the entire one million dollars in coverage.

II. Standard of Review

"[M]andamus relief is appropriate if the relator establishes a clear abuse of discretion for which there is no adequate appellate remedy." *In re Durnin*, 619 S.W.3d 250, 252 (Tex. 2021) (orig. proceeding). The burden is on the relator to provide a sufficient record showing it is entitled to mandamus relief. *Walker v. Packer*, 827 S.W.2d 833, 837 (Tex. 1992) (orig. proceeding). "[A]ppellate courts generally lack jurisdiction to review contempt orders on direct appeal . . . ." *Caldwell v. Garfutt*, No. 03-12-00696-CV, 2014 WL 1576871, at *1 (Tex. App.—Austin Apr. 17, 2014, orig. proceeding). Thus, "[t]he controlling issue then is whether [Donald] has demonstrated that the trial court clearly abused its discretion." *Id.* "A trial court clearly abuses its discretion if 'it reaches a decision so arbitrary and unreasonable as to constitute a clear and prejudicial error of law.'" *Id.* (quoting *Walker*, 827 S.W.2d at 839).

III. Health-Insurance Payments

Section 9.001(a) of the Texas Family Code permits "[a] party affected by a decree of divorce . . . providing for a division of property" to "request enforcement of that decree by filing a suit to enforce as provided by this chapter in the court that rendered the decree." TEX. FAM. CODE ANN. § 9.001(a). Section 9.012 of the Texas Family Code states,

> (a) The court may enforce by contempt an order requiring delivery of specific property or an award of a right to future property.
>
> (b) The court may not enforce by contempt an award in a decree of divorce or annulment of a sum of money payable in a lump sum or in future installment payments in the nature of debt, except for:
>
> > (1) a sum of money in existence at the time the decree was rendered; or
> >
> > (2) a matured right to future payments as provided by Section 9.011 [of the Texas Family Code].
>
> (c) This subchapter does not detract from or limit the general power of a court to enforce an order of the court by appropriate means.

TEX. FAM. CODE ANN. § 9.012.

Additionally, "[t]he Texas Constitution provides that '[n]o person shall ever be imprisoned for debt.'" *In re Henry*, 154 S.W.3d 594, 596 (Tex. 2005) (per curiam) (orig. proceeding) (second alteration in original) (quoting TEX. CONST. art. I, § 18). "Thus, although an order requiring payment of debt may be enforced through legal processes like execution or attachment, a confinement order premised on failure to pay a debt is void." *Id.* (citing *Ex parte Hall*, 854 S.W.2d 656, 658 (Tex. 1993) (orig. proceeding) ("stating 'the failure to comply with an order to pay a "debt" is not contempt punishable by imprisonment'")).

The final decree of divorce states, in relevant part:

MEDICAL INSURANCE

> **Donald Allen Trumble** shall continue to pay for health insurance covering **Tammi Wynette Trumble** for a period of fifteen (15) years from the date of the signing of this [d]ecree.

Here, Tammi acknowledges that this health-insurance obligation is not spousal maintenance, but rather a "performance obligation." However, "under Texas law, an order incorporating a voluntary support obligation that does not qualify as spousal maintenance creates a debt that is enforceable as a contract, not a court-ordered obligation that is enforceable as a judgment." *Dalton v. Dalton*, 551 S.W.3d 126, 134 (Tex. 2018) (citing *In re Green*, 221 S.W.3d 645, 647–48 (Tex. 2007) (per curiam) (orig. proceeding)). As such, we find that Donald's obligation was in the nature of a voluntary-support agreement under Chapter 7 of the Texas Family Code and thus created a debt. *See id.* "If the contested obligation falls under Chapter 7 of the Texas Family Code, then it is characterized as a debt which is not enforceable by contempt." *White v. White*, 736 S.W.3d 919, 925 (Tex. App.—Tyler 2026, no pet.) (citing *Ex parte Hall*, 854 S.W.2d at 656–57 ("recognizing an obligation imposed by law on spouses to support one another is considered a legal duty and not a debt under Article I, Section 18 of the Texas Constitution")).

"Because the Texas Constitution prohibits the imprisonment of any person for a debt, we hold that the trial court's order holding [Donald] in contempt and committing him to county jail for failing to make the monthly installment payments due to [Tammi] is void." *In re Denson*, No. 01-19-00653-CV, 2020 WL 425291, at *3 (Tex. App.—Houston [1st Dist.] Jan. 28, 2020,

orig. proceeding) (mem. op.) (citing TEX. CONST. art. I, § 18; *In re Richardson*, 528 S.W.3d 155, 161 (Tex. App.—El Paso 2017, orig. proceeding)). We sustain Donald's first issue.

IV. Life-Insurance Obligation

By his second issue, Donald challenges the trial court's July 15, 2026, order in which it stated, "For purposes of clarification," Donald was ordered to "obtain a life[-]insurance policy" in compliance with the final decree of divorce, either through a substitute or replacement policy for the policy he had cancelled. Donald argues that the trial court abused its discretion by modifying the agreement between the parties when it "ordered that Donald must obtain a new or substituted policy." Donald's argument is that the relief granted by the trial court in requiring him to obtain a new or substituted policy goes outside of the final decree which "only mandated that Donald *maintain the policy that existed at the time of the* [*d*]*ecree*."

However, the trial court's order did not modify the final divorce decree, but rather it was a clarification of the trial court's order to enforce the existing decree. Upon Tammi's enforcement motion, the trial court found that Donald had violated the life-insurance provision contained within the final decree of divorce and the trial court found Donald in contempt for the violation. Donald was ordered to purge the contempt by "reinstating" the policy that he had cancelled. Even so, after Donald filed a motion to modify or vacate the contempt orders, the trial court entered its July 15 order clarifying that Donald must maintain a life-insurance policy in compliance with the final decree of divorce, and to do so, he must obtain a substitute policy for the one that he cancelled. Because the trial court's July 15 order did not modify the underlying decree, but rather clarified the enforcement of the final decree, we overrule Donald's second

issue. *See In re Richardson*, 528 S.W.3d at 166 ("The record reflects that the trial court clarified the contempt order on Thomas's motion. Under the invited error doctrine, a party is estopped from challenging a trial court's ruling if the complaining party actually requested the specific action that the trial court took.").

V. Jurisdiction

In his third and final issue, Donald complains that the trial court failed to exercise jurisdiction over an order of contempt. The trial court's July 15 order states,

> [T]hat even if it were inclined to vacate or modify its Final Judgment entered on or about April 22, 2026, which it would not be inclined to do, it lacks jurisdiction to modify or vacate the [f]inal [j]udgment. The [trial court] no longer had plenary jurisdiction in this case when the [m]otion to [v]acate or [m]odify was filed. While the [trial court] has inherent jurisdiction to enforce its contempt orders after plenary jurisdiction expires, it does not retain jurisdiction to modify or vacate judgments after plenary jurisdiction expires, even if the judgment contains an order of contempt.

Donald complains that while Rule 329b(d) of the Texas Rules of Civil Procedure allows the trial court to "vacate, modify, correct, or reform the judgment within thirty days after the judgment is signed," quoting TEX. R. CIV. P. 329b(d), the Texas Supreme Court has held that the rule does not apply to matters of contempt. *See Ex parte Anderson*, 900 S.W.2d 333, 335 n.1 (Tex. 1995) (per curiam) (orig. proceeding). We agree. *See In re Naylor*, 120 S.W.3d 498, 500 (Tex. App.—Texarkana 2003, orig. proceeding) ("We have found no cases, and have been directed to no cases, that apply [Rule 329b] to rulings made in contempt proceedings. Thus, the plenary[-]power constraints of the rule would not apply in this case."). Because the order which Donald sought to modify or vacate related specifically to the contempt proceedings, the trial

court incorrectly determined that it lacked jurisdiction to consider the matter. As such, we sustain Donald's third issue.

VI. Conclusion

Having determined that the trial court's contempt finding regarding the failure to make payments for Tammi's health insurance is void and that the trial court does not lack jurisdiction to consider Donald's motion to vacate and modify judgment, we conditionally grant Donald's petition for a writ of mandamus as it relates only to those issues. We direct the trial court to vacate the portion of the contempt order as it relates to the health-insurance payments. We further direct the trial court to vacate the order denying Donald's motion to vacate and modify judgment and remand to the trial court to address the same. The writ will be issued only if the trial court fails to comply within thirty days of the date of this opinion. We remand for further proceedings consistent with this opinion.

Scott E. Stevens
Chief Justice

Date Submitted: October 8, 2026
Date Decided: October 9, 2026